

National Policy on Management of Chemicals

Ministry of Environment
“Sobadam Piyasa”, 416/C/1,
Robert Gunawardana Mawatha, Battaramulla
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Effective Date: 09th January 2023

1.0 The Rationale for Developing a National Policy on Chemical Management in Sri Lanka

1.1 The need

Production and use of chemicals have been increasing globally along with the economic growth. On the other hand, serious concerns over detrimental impacts on human health and the environment as a result of inappropriate production, transportation, storage, consumption/use of chemicals and disposal of chemical-waste have also arisen. Therefore, Sri Lanka with its expected economic development, will face more adverse impacts of chemicals if appropriate legislations on management of chemicals are not formulated and actions are not taken to promote sustainable management of chemicals.

The United Nations, in chapter 19 of its Agenda 21 specifically identified “Environmentally Sound Management of Toxic Chemicals” as one of the global priorities to address. Moreover, Chemicals and Waste Management is addressed under the Goal 12 of Sustainable Development Goals, and addressed under the National policy on Sustainable Consumption and Production.

Therefore, a national policy on management of chemicals that ensures transparency of use and control of chemical mass flows from import/production through downstream use, of consumer products to waste disposal stage is urgently needed to ensure “Environmentally Sound Management of Chemicals” in the country.

In Sri Lanka there is inadequate commitment on the part of individuals and organizations to take responsibility for the negative impact of chemicals on human health and environment. Sri Lanka experiences chemical use in both formal and informal settings and the latter use which is quite significant is almost without any oversight. The costs of reversing negative impacts of inappropriate use and disposal of chemicals would be immense and ultimately become a burden to the economy. Some of the impacts are not reversible and permanent too. Therefore, it is important to introduce a National Policy on Management of Chemicals developed in consultation with all relevant stake holders.

1.2 Scope of the Policy

The scope of this policy addresses the life cycle management of chemicals. Specifically, it addresses all “Chemicals of Concern”. Chemicals of Concern includes toxic agrochemicals and hazardous industrial chemicals, Persistent Organic Pollutants, Persistent Bio-accumulative Toxic Substances (PBT) as well as Endocrine Disruptive Chemicals or EDCs. The policy recommends Sri Lanka to regularly review the hazards and perform risks assessments of chemicals. It also proposes to incorporate new data and information arising from research and developments and monitoring of positive / negative impacts of chemicals as well as possible alternatives for safer chemicals and technologies.

The policy links with other national and sectoral policies and regulations including National Policy on Waste Management, Occupational Safety and Health policy and regulations. The policy further provides the basis for generating legal instruments for sustainable management of chemicals. It also covers the implementation of Multilateral Agreements (MAs) related to chemicals, trade controls, emergency response, waste management, transport, compensation and remediation of sites contaminated by

chemicals of concern. This policy includes all chemicals falling under the categories of chemical weapons and precursor chemicals as well as all chemical categories where regulation of these special categories will be under respective policy documents. Hence, the policy networks with all related areas of concern adequately and appropriately.

1.3 Definition of Chemicals

For this policy, chemicals are considered to be all physical forms or any preparation of substances where the following definitions apply:

CHEMICALS: elements and compounds, mixtures thereof, whether natural or synthetic (adopted from ILO Chemicals Convention 1990 (No.170) and ILO Chemicals Recommendation 1990 (No.177))

2.0 Policy Framework

The National Policy on Management of Chemical shall comply with the National Development Objectives of the government of Sri Lanka and sustainable development goals and aspirations.

2.1 Policy Objectives

The National Policy on Chemical Management of chemicals renews the commitment of the Government, in ensuring the life cycle management of chemicals in a way to reduce harm to human health and environment. It shall be based on the Precautionary Principle, Proximity Principle and Polluter Pay Principle, within the framework of sustainable development for the benefit of the present and the future generations. This policy supports other related policies and is intended to be complementary. The major policy

objectives are as follows:

2.1.1 Strengthening, improving and introducing strategies and actions regarding chemical management to ensure reduced adverse impacts on human health and the environment without hindering the economic development of Sri Lanka.

2.1.2 Ensure effective enforcement and implementation of related laws, regulations, guidelines and standards by clear allocation of responsibilities

2.1.3 Implement the obligations made under the Multilateral Environmental Agreements (MEAs) in relation to chemical management

2.1.4 Foster capacity building and technological cooperation of all stakeholders

2.1.5 Providing an institutional framework for decision making, training, research and development (R&D) and international cooperation in matters pertaining to sustainable chemicals management.

2.1.6 Assure effective coordination of all related government institutions to ensure effective implementation of this policy.

2.1.7 Establish effective control and monitoring systems for chemical management to assess policy implementation efficiency, regulatory compliance and identify emerging risks.

2.1.8 Promote and ensure dissemination of knowledge of safe and environment friendly handling of chemicals. This includes establishing a structure to exchange information on chemicals focusing on regulations and laws at national level.

2.1.9 Ensure the safe and sustainable management of chemicals and associated packing at every stage of the chemical life-cycle and in this way, protecting human health, protecting the environment and reducing resource consumption.

2.1.10 Ensure smart chemicals management by deploying information management tools

2.2 Policy Principles

2.2.1 Sri Lanka would prioritize the acquisition and development of its own competences in all aspects of chemicals management

2.2.2 The import, manufacture, use, storage, transportation, sale and disposal of chemicals shall conform with national legislation, and with international conventions as well as other agreed policies.

2.2.3 The national regulations and standards should be harmonized and streamlined with international regulations. There should be a balance where international regulations would be adapted to suit local needs. Sri Lanka recognizes the importance of articles and guidelines in the chemical related conventions, multinational agreements and Sustainable Chemistry that reduces the adverse effect of chemicals on human health and environment without jeopardizing the economic development of the country.

2.2.4 Establish “Extended Producer Responsibility” and the “Polluter Pays Principle”, to internalize the externalities related to chemical management

2.2.5 Sri Lanka shall place utmost importance in enforcement of regulations and implementation of necessary measures and clear allocation of tasks and responsibilities within different authorities, as a high priority.

2.2.6 Arrangements shall be made for transparency in sharing of the information related to chemical management to the maximum possible level within the legal framework. Public awareness, education and knowledge sharing will be enhanced to ensure stakeholder participation in the decision making, where ever possible.

2.2.7. Strengthen the risk analysis assessment, management and communication at all levels

2.3 Policy Statements

- Recognizing the importance of protecting its people, and its environment while promoting a sustainable development through the implementation of measures for sustainable management of chemicals emphasizing sustainable consumption and production.
- Recognizing the value of human health and the natural resources of the country and also the risk that may be incurred on them due to penetration of outdated technologies associated with chemicals
- Recognizing the importance of developing capacities in sustainable chemical management through awareness programs and carrying out research by relevant authorities.
- Reaffirming the commitment to the obligations of all chemical related conventions, namely Basel, Rotterdam, Stockholm and Minamata conventions but not limited to them.
- Recognizing the importance of close coordination among stakeholder institutions in the management of chemicals and articles containing hazardous chemicals from import/production to final disposal
- Recognizing the importance of gender mainstreaming at all

levels of management of chemicals.

2.3.1 There shall be a national chemical management secretariat under the relevant line ministry with the subject of environment to coordinate all responsible institutions at national and international level for sustainable management of chemicals

2.3.2 Appropriate management of data on chemicals (Chemicals database) is required and adequate funds shall be allocated.

2.3.3 Priorities in human resource development such as training, capacity building, competence building for all stakeholders in management of chemicals shall be identified

2.3.4 Priorities in research with a special focus on risk assessment, management and communication at all levels including better alternatives, health hazards shall be identified and adequate funds shall be allocated to relevant authorities.

2.3.5 Sustainable use of chemicals shall be established through new tools and technologies, labelling, introduction of guidelines and implementing monitoring systems at all levels

2.3.6 Systems shall be established to internalize the externalities based on the Polluter Pays Principle and application of Market-Based Instruments considering the nature of the chemicals.

2.3.7 Emergency service team shall be established and attached to the existing Disaster Management Centre, allocating trained human resources and other required resources.

2.3.8 Regular monitoring of application of this policy will be strengthened and institutionalized.

2.3.9 Dissemination of relevant information on chemical hazards and risks along the life-cycles to the responsible parties shall be

guaranteed through the institutional set up

3.0 Strategies for Sustainable Chemicals Management

1. Establish and activate a “Coordinating Secretariat for Management of Chemicals” under relevant line ministry with subject of environment by re-allocation of resources.
2. Introduce technological and managerial tools to all stages of the chemical value chain enabling smart chemicals management to expedite decision making across all processes.
3. Establish a system for integrated workplace inspection by a team consisting of officers from relevant authorities and strengthen inspection program through training of inspectors.
4. Establish mechanisms by relevant authorities to improve chemical use and handling in informal work settings and streamline them.
5. Promote and foster workplace self-assessment capacity in sound management of chemicals and chemical waste.
6. Coordinate with Central Environmental Authority to promote chemical consumption reporting of industries through Environment Protection License and Scheduled Waste Management License Applications with special focus on hazardous chemicals/ chemicals of Concern used that have higher risk on environment and health.
7. Strengthen National Green Reporting System to make reporting chemical related information by involved stakeholders.
8. Introduce a database to collect chemical related information through coordination with all players along the value chain and develop a central mechanism to manage chemical data.
9. Streamline chemical flow from port to warehouses/industries through revised regulations and documentation.

10. Coordinate with stakeholders to exchange knowledge on accidents as well as incidents related to chemicals.
11. Take appropriate action in strengthening prevention and preparedness of chemical accidents and incidents across all Sri Lankan economic zones (land and sea) by relevant agencies.
12. Incorporate regular chemical risk assessment and hence implement risk avoidance/control/mitigation/transfer into industries where hazardous chemicals are in use.
13. Introduce Market Based Instruments to promote application of analytical tools for hazard identification and risk assessment where necessary.
14. Develop and introduce a rating system for all entities along the value chain based on comprehensive risk assessment
15. Strengthen legal framework to impose legal actions and penalties for non-compliance and inappropriate chemicals management along the chemicals value chain.
16. Make arrangements to implement “Polluter Pays System” for all chemical related activities along the chemical value chain, Activity including storage, transportation and sales.
17. Establish regulation for internal transport of dangerous good and chemicals to ensure safety of individuals transporting those products and also to reduce damage to other people, property and the environment not only due to vehicle accident but also from those goods and chemicals.
18. Coordinate with Ministry of Health and Department of Labor to encourage and promote dissemination of information on chemical risks from occupational exposure.
19. Increase capacities for total environmental and bio – monitoring facilities and enabling dynamic monitoring with public reporting.
20. Increase public awareness of all stakeholders on general and domestic use of chemicals and products containing hazardous chemicals regardless of their race, socio-

economic status, or gender and deserves to live in an environment free of toxic chemicals while giving more focus to the women's exposure to chemicals as many chemicals stored in a woman's body can be passed onto next generation during pregnancy and later through breast-feeding.

21. Encourage and incentivize journalists/media personnel to disseminate information through mass media including all types of communication material on safe sustainable chemical consumption.
22. Promote the development of an appropriate collection and recovery/disposal infrastructure for obsolete chemicals at all institutions/industries/end users.
23. Promote application of sustainable chemistry/green chemistry to substitute hazardous chemicals.
24. Establish/Promote industry-university interactions/partnerships to encourage research by sustainable chemical practices and approaches.
25. Ensure chemical industry/work place zoning considering strategic placement of hazardous chemical industries in suitable zones and promote chemical symbiosis to facilitate sustainable exchange of chemicals considering their toxicity.
26. Publish and update the obligations of the country under multilateral environment agreements and obligations of industries related to them
27. Facilitate local training institutions to broaden the training packages on chemicals management to all categories of industry personnel
28. Foster standardization of Personal Protective Equipment (PPE) and chemical exposure measuring /monitoring methods and equipment
29. Coordinate with Disaster Management Centre to establish and train emergency response teams for chemical hazards at Divisional Secretariat Level.

30. Facilitate all entities along the value chain to train their staff and establish emergency preparedness plans.
31. Revise national standards for quality control for food and consumer products which can leach, discharge, emit and convert into hazardous chemicals adversely impacting to health or environment during its storage, use or disposal. Monitor chemical wastage, hazardous exposure or release due to quality issues.
32. Develop an appropriate mechanism to expedite the approval processes in industry and commercial sectors, in import/ export of chemicals.
33. Develop a strong monitoring mechanism in order to deliver the decisions/ approvals efficiently and effectively, especially for the chemical components, which affect the industry/commercial sectors.
34. Strengthen existing and establish new local laboratory analysis facilities for parameters concerned with quality of products or chemicals produced or imported to country assuring timely conduct of analysis and report delivery to improve dependency on evidence based chemical management avoiding delays in approval processes and taking corrective actions.